

24NNCV03856 24NNCV03856

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Case Number: 24NNCV03856 Hearing Date: August 7, 2026 Dept: A

TENTATIVE

RULING

AUGUST 7, 2026

MOTIONS

TO COMPEL RESPONSES

Los Angeles Superior Court

Case # 24NNCV03856

MP: Defendants

David Sarkis Sandrosyan and United Hardwood Flooring

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at
or by telephone at (818) 260-8412.

MOTION ON CALENDAR:

On June 22, 2026, David

Sarkis Sandrosyan and United Hardwood Flooring ("Defendants") filed a single motion to compel Filip Piliposyan's ("Plaintiff") initial responses to: (1) Form Interrogatories ("FROG"), set one; and (2) Request for Production of Documents ("RPD"), set one. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response and for a monetary sanction. (C.C.P. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.)

Where there has been no timely response to a demand to produce documents, the demanding party may seek an order compelling a response. (C.C.P. § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (C.C.P. § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

ANALYSIS:

A.

Discussion

On October 7, 2025, Defendants served on Plaintiff the discovery requests, such that responses were due by November 7, 2025. On March 25, 2026, defense counsel emailed Plaintiff's counsel requesting responses, but Plaintiff's counsel did not respond. On April 13, 2026, defense counsel sent a follow-up email with a meet and confer letter, requesting responses by April 17, 2026. Plaintiff's counsel responded, requesting an April 24, 2026 deadline. As of the filing of the motion, Defendants state that they have not received Plaintiff's responses.

Defendants' unopposed motion to compel responses to the FROG and RPD is granted pursuant to C.C.P. §§ 2030.290 and 2031.300. Plaintiff is ordered to provide verified responses to the discovery requests, without objections, within 30 days of this order.

B.
Sanctions

The Court has discretion to impose a monetary sanction against a party engaging in the misuse of the discovery process, or any attorney advising that conduct. (C.C.P. § 2023.030(a).) Sanctions are only mandatory as against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or RPD, unless the Court finds they acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (C.C.P. §§ 2030.290(c) & 2031.300(c).) Regardless, it is customary to grant sanctions where a party has filed a motion to compel, and the other party fails to file an opposition. (C.R.C. Rule 3.1348(a).)

Defendants request \$1,124.70 in sanctions against Plaintiff and his attorney (= [2 hours for the motion + [2 anticipated hours to review/reply to the opposition and attend the hearing] at \$260/hour + \$84.70 in filing fees). (Mikucki Decl., ¶10.) Plaintiff, when bringing a lawsuit, must understand the concomitant discovery responsibilities and obligations. If they are unwilling to assent to these, then perhaps a lawsuit is not ultimately in Plaintiff's best interest.

"[P]retrial discovery promotes the 'historically important state interest of facilitating the ascertainment of truth....'" (Davies v. Superior Court (1984) 36 Cal.3d 291) "The policy of the state is that the parties to a lawsuit 'shall cooperate.' Period. Full stop." (Lasalle v. Vogel (2019) 36 Cal.App.5th 127, 130).

A defendant should not be forced to incur the stress of a lawsuit and have that compounded by the expense of pursuing basic discovery. The request is granted in the reasonable amount of \$604.70. The Court finds that

this amount is reasonable as this is a straightforward, unopposed motion to compel initial responses.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants David Sarkis Sandrosyan and United Hardwood Flooring's Motion to Compel Responses and Motion to Deem the RFAs Admitted came on regularly for hearing on August 7, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATORIES AND REQUESTS FOR PRODUCTION OF DOCUMENTS IS GRANTED. RESPONSES ARE TO BE MADE WITHIN 30 DAYS.

Plaintiff and his counsel of record, jointly and severally, are ordered to pay \$604.70 in monetary sanctions to DefendantS, by and through counsel, within 30 days of this order.

DEFENDANT SANDROSYAN TO PROVIDE NOTICE.

IT IS SO ORDERED.